

25STCV32534 25STCV32534

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-07

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Case Number: 25STCV32534 Hearing Date: July 7, 2026 Dept: 510

No.

12 - George Jones v. Luxurious Properties, LLC, et al.

Plaintiff George Jones's Motion to

Enforce Settlement Agreement

Plaintiff

George Jones moves to enforce the settlement agreement and enter judgment against Defendant Luxurious Properties, LLC.

As

an initial matter, the Court notes that Defendant Luxurious Properties, LLC's opposition brief was untimely served on Plaintiff. Under Code of Civil Procedure section 1005(b), all papers opposing a motion must be served at least 9 court days before the hearing. Here, the opposition papers were served on Plaintiff on June 25, 2026, only 7 court days before the hearing. There is no explanation for this delay in Defendant's papers. However, the Court will exercise its discretion to consider Defendant's untimely opposition when ruling on this motion.

Entry

of Judgment

Plaintiff

shows sufficient grounds to enter judgment of \$8,333.33 against Defendant Luxurious Properties, LLC. Code of Civil Procedure section 664.6, subdivision (a) provides in relevant part, "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court... for

settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.”

Plaintiff

and Defendants Luxurious Properties, LLC and Family Dollar, LLC entered a written agreement to settle the action. (Chernoff Decl., ¶ 4, Ex. 1, Settlement Agreement.) The agreement requires Defendant Luxurious Properties to pay \$8,333.33 “no later than the first business day thirty (30) days after the full execution of this Agreement.” (Settlement Agreement, ¶ 5.) The agreement was fully executed on March 9, 2026, and payment was due by April 8, 2026. (Settlement Agreement, at p. 8; Chernoff Decl., ¶ 10.)

Here,

Defendant Luxurious Properties, LLC has still not paid the \$8,333.33 amount due to Plaintiff. (Chernoff Decl., ¶¶ 10, 12.) Thus, pursuant the terms of the settlement agreement, the unpaid settlement amount is due to Plaintiff. In its opposition, Defendant does not contest that it owes this amount.

Attorney

Fees

Plaintiff is entitled to recoverable attorney fees and costs incurred in bringing this motion. The settlement agreement provides, “In the event of breach of this agreement, the prevailing party is entitled to recovery of their attorney fees and costs in any proceeding concerning breach of contract or enforcement of this agreement.” (Settlement Agreement, ¶ 12.)

Plaintiff’s

counsel did not, however, reasonably incur \$3,451 in fees and costs in preparing this motion. The time spent meeting and conferring, drafting this motion, preparing a reply brief, and attending the future hearing does not reasonably require a total of 5.8 hours of work at a rate of \$595 per hour. (Chernoff Decl., ¶ 17.) The motion to enforce settlement is only six pages long. The Court exercises its discretion to not award fees for 0.6 hours spent meeting and conferring. The Court will also reduce Plaintiff counsel’s remaining hours by one-half. This totals \$1,547 in attorney fees. Plaintiff is entitled to recover its \$60 filing fee for the motion.

Disposition

Plaintiff George Jones's motion to enforce settlement agreement is granted. Plaintiff is ordered to submit a modified proposed judgment in the amount of \$8,333.33, plus \$1,607 in attorney fees and costs, against Defendant Luxurious Properties, LLC for the Court's signature forthwith.